



CHAPTER lxxvii.

An Act to confirm a Provisional Order made by the Board of Trade under the Electric Lighting Acts 1882 and 1888 relating to Bath (Extension). [3rd August 1910.] A.D. 1910.

WHEREAS under the authority of the Electric Lighting Acts 1882 and 1888 the Board of Trade have made the Provisional Order set out in the schedule to this Act: 45 & 46 Vict. c. 56. 51 & 52 Vict. c. 12.

And whereas a Provisional Order made by the Board of Trade under the authority of the said Acts is not of any validity or force whatever until the confirmation thereof by Act of Parliament:

And whereas it is expedient that the Provisional Order made by the Board of Trade under the authority of the said Acts as set out in the schedule to this Act be confirmed by Act of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Electric Lighting Order Confirmation (No. 4) Act 1910. Short title.

2. The Order as amended and set out in the schedule to this Act is hereby confirmed and the same shall from and after the passing of this Act have full validity and effect. Order in schedule confirmed.

A.D. 1910.

SCHEDULE.**BATH ELECTRIC LIGHTING (EXTENSION).***Bath*
(Extension).

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Mayor Aldermen and Citizens of the City of Bath in respect of the City of Bath and parts of the Rural District of Bath in the County of Somerset.

Short and
collective
titles.

1. This Order may be cited as the Bath Electric Lighting (Extension) Order 1910 and this Order and the Bath Electric Lighting Order 1896 (herein-after called "the principal Order") may be cited together as the Bath Electric Lighting Orders 1896 and 1910.

Incorporation of Electric Lighting (Clauses) Act 1899 and repeal of parts of Bath Electric Lighting Order 1896.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 are (with the exception of sections 83 and 84 of that schedule) incorporated with and form part of this Order and the undertaking authorised by the principal Order and the Undertakers in respect thereof shall be subject to those provisions as if those provisions were substituted by this Order for the corresponding provisions of that Order and so much of that Order as is inconsistent with those provisions is hereby repealed without prejudice to anything done or suffered thereunder. Provided that sections 23 and 65 of the said schedule shall apply to the undertaking within the added area as if the Undertakers were the local authority.

Added area
of supply.

3. Subject to the provisions of this Order there shall be added to the area of supply for the purposes of the principal Order as amended by this Order the area (in this Order called "the added area") which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.

Compulsory
works.

4. Subject to the provisions of this Order there shall be added to the list of streets and parts of streets mentioned in the Second Schedule to the principal Order (being streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains) the parts of streets (within the added area) mentioned in the Second Schedule to this Order.

5. Subject to the provisions of this Order there shall be added to the list of streets and tramways mentioned in the Third Schedule to the principal Order (being streets not repairable by the local authority and tramways which the Undertakers are specially authorised to break up) the streets and tramways (within the added area) which are mentioned in the Third Schedule to this Order.

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Power to
break up
streets and
tramways.

6.—(1) The Undertakers shall so soon as the annual statement of accounts of the undertaking under the principal Order and this Order has been filled up in the form prescribed by the Board of Trade under the Electric Lighting Act 1882 publish in a newspaper circulating in the city of Bath a notification that such statement of accounts has been filled up and that copies of it can be obtained at the offices of the Undertakers at a price not exceeding one shilling a copy and such publication shall be in addition to and not in substitution for any publication prescribed by the Board of Trade under the Electric Lighting Act 1882.

Revision of
prices so as
to balance
revenue and
expenditure.

(2) The Undertakers shall on the expiration of the fifth complete financial year after they have commenced to supply electrical energy under this Order and on the expiration of each third succeeding year re-consider and if necessary revise and thereafter maintain the scales of prices charged for electrical energy under the principal Order or this Order so that so far as is reasonably practicable no rate will be required for the purpose of defraying the future expenses of the said undertaking during the next three years Provided nevertheless that—

(a) the prices to be charged shall not exceed the maximum prices authorised to be charged under the principal Order or this Order;

(b) the scales of prices so re-considered and revised may be from time to time in like manner re-considered and revised by the Undertakers.

(3) Nothing in this section contained shall prevent the Undertakers from entering into contracts for periods which may extend beyond the periods at which any revision may take place under the provisions of this section on special terms under special circumstances not applicable to ordinary consumers but each such contract shall provide that the price to be charged for energy supplied under such contract shall either—

(a) be subject to revision at the next triennial revision provided for in this section; or

(b) vary in the same proportion as the prices charged to ordinary consumers:

Provided that the Undertakers shall not without their consent be required to accept any price lower than the minimum price mentioned in such contract.

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(4) There shall not be made against the district rate or any other rate for energy used by the Undertakers for street lighting or any other purpose a charge at a higher price than that charged to consumers using energy for similar purposes and for the like hours of supply.

Saving for
Duchy of
Cornwall.

7. Nothing in this Order contained shall prejudice or affect any property rights powers authorities or privileges of his Royal Highness the Prince of Wales in right of his Duchy of Cornwall or of the possessor of the Duchy of Cornwall for the time being.

Commence-
ment of
Order.

8. In the application of the principal Order (as amended by this Order) to the added area the expression "the commencement of this Order" shall mean the day on which the Act confirming this Order is passed.

SCHEDULES.

FIRST SCHEDULE.

Area added by this Order to the Area of Supply under the principal Order.

Such portion of the rural district of Bath in the county of Somerset as lies within the distance of three miles from the Guildhall in the city of Bath.

In the case of difference between this description and the area as delineated upon the deposited map the latter shall prevail.

SECOND SCHEDULE.

List of parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order.

Parish of Twerton:—

Lower Bristol Road from the boundary of the city of Bath to Bellott's Road Stanley Road from the boundary of the city of Bath to the Triangle.

Parish of Weston :—

Weston Road from the boundary of the city of Bath to Summerfield House.

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Parish of Charlcombe :—

Lansdown Road from the boundary of the city of Bath to Kingswood College Lodge.

Parish of Swainswick :—

Gloucester Road from the London Road to Oriel House.

THIRD SCHEDULE.

List of streets not repairable by the local authority and tramways which by virtue of this Order may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

STREETS :—

Parish of Bathampton :—

Blind Lane the bridge carrying Bathampton Road across the Kennett and Avon Canal the bridge carrying Mill Lane over the Great Western Railway part of the bridge carrying Mill Lane across the River Avon.

Parish of Batheaston :—

Avon Vale Place part of the bridge carrying Mill Lane across the River Avon.

Parish of Charlcombe :—

Fonthill Road Hamilton Road Waldegrave Road College Road.

Parish of Claverton :—

Ferry Lane the bridge carrying Ferry Lane across the Kennett and Avon Canal.

Parish of Combe Hay :—

Road to Rowley Farm and Caisson House including the road or bridge crossing the Old Somerset Coal Canal Company's Canal the road or bridge crossing the same canal part of the road between Combe Hay and Midford.

Parish of Monkton Combe (portion known as Combe Down) :—

Gladstone Road Villa Road West Brow Road (portion known as Monkton Combe Village) the road or bridge across the Old Somerset Coal Canal Company's Canal leading to Monkton Combe Mills.

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Prospect Buildings Albany Road Lansdowne Terrace Burnham
Terrace South the bridge carrying Bellott's Road Brook Road
and Brougham Hayes over the Great Western Railway the bridge
carrying the road from Claude Avenue to Bridge Road over the
Somerset and Dorset Joint Railway part of Twerton Suspension
Bridge and the approach thereto.

Parish of Weston :—

Victoria Nursery Road Primrose Hill Road Audley Park Road part
of Twerton Suspension Bridge and the approach thereto.

TRAMWAYS :—

The tramways of the Bath Electric Tramways Limited.

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